

HOUSE No. 2961

The Commonwealth of Massachusetts

PRESENTED BY:

Greg Schwartz and Richard G. Wells, Jr.

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to disability or death caused by contagious disease; presumption.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Greg Schwartz</i>	<i>12th Middlesex</i>	<i>1/17/2025</i>
<i>Richard G. Wells, Jr.</i>	<i>7th Norfolk</i>	<i>1/17/2025</i>
<i>Patrick Joseph Kearney</i>	<i>4th Plymouth</i>	<i>2/5/2025</i>

HOUSE No. 2961

By Representatives Schwartz of Newton and Wells of Milton, a petition (accompanied by bill, House, No. 2961) of Greg Schwartz, Richard G. Wells, Jr., and Patrick Joseph Kearney relative to the presumption for disability or death cause by contagious diseases. Public Service.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 2528 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to disability or death caused by contagious disease; presumption.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 32 of the General Laws is hereby amended by inserting after section 94B the
2 following new section: Section 94C.

3 (1) Notwithstanding the provisions of any general or special law to the contrary, and for
4 the purposes of any death, disability or medical services claim including claims under Chapter
5 32, Chapter 41 and Chapter 152 of the General Laws, any contagious disease, resulting in
6 disability or death to a full-time uniformed member of a paid police department, fire department
7 or municipal emergency medical service shall, if the person successfully passed a physical
8 examination on entry into such service or subsequent to such entry, which examination failed to
9 reveal any evidence of such condition, be presumed to have been suffered in the line of duty,
10 unless it is shown by a preponderance of the evidence that non-service connected risk factors or

11 non-service connected accidents or hazards undergone, or any combination thereof, caused such
12 incapacity. The provisions of this section shall only apply if the disabling or fatal condition is a
13 type of contagious disease which may, in general, result from exposure to blood and other body
14 fluids of the sick, excluding the common cold.

15 (2) Any person first discovering any such condition within five years of the last date on
16 which such person actively so served shall be eligible to apply for benefits hereunder, and such
17 benefits, if granted, shall be payable as of the date on which the employee last received regular
18 compensation. The provisions of this section shall not apply to any person serving in such
19 position unless such person shall first establish that they regularly responded to calls for police,
20 fire or emergency medical service during some portion of the period of their service in such
21 position.

22 (3) The provisions of this section shall also apply to any condition of COVID-19,
23 Hepatitis A, B, or C, Tuberculosis, HIV, and any other contagious disease which is found by
24 regulation by the commissioner of the department of public health to have a statistically
25 significant correlation with police, fire or emergency medical service.

26 (4) Nothing herein shall preclude a member from applying for and receiving benefits
27 under section seven or section nine, subject to the provisions of said sections.